MAHKAMAH PERUSAHAAN MALAYSIA

NO. KES: 2/4-1126/24

ANTARA

KIM JIHYUN

DAN

SCGS (MALAYSIA) SDN. BHD.

NO. AWARD : 1845 TAHUN 2025

DI HADAPAN **: Y.A. TUAN MOHD ZULBAHRIN BIN ZAINUDDIN**
- PENGERUSI

TEMPAT **:** Mahkamah Perusahaan Malaysia, Kuala Lumpur

TARIKH RUJUKAN **:** 09.09.2024.

TARIKH SEBUTAN **:** 16.10.2024; 08.01.2025; 14.07.2025; 21.07.2025; 24.09.2025.

TARIKH BICARA **:** 04.08.2025; 05.08.2025.

PERWAKILAN **:** Irman Al-Syaffeeq Bin Mohd Simin Bersama Muhammad Izhar Bin Mohd Salehuddin
Dari Tetuan Abdul, Low & Partners
(Peguam Yang Menuntut)

Gerard Louis Ambrose Bersama Chew Harn Hwei
Dari Tetuan Louis Ambrose & Partners
(Peguam Pihak Syarikat)

AWARD

RUJUKAN

[1] Prosiding di hadapan Mahkamah ini adalah lanjutan daripada rujukan yang dibuat oleh Ketua Pengarah Perhubungan Perusahaan Malaysia di bawah Seksyen 20(3) Akta Perhubungan Perusahaan 1967, berhubung dengan pembuangan kerja **Kim Jihyun** ("Yang Menuntut") pada 12.06.2024 oleh **SCGS (Malaysia) Sdn Bhd** ("pihak Syarikat").

Perbicaraan

[2] Kes ini telah mula dibicarakan pada 04.08.2025 dan berakhir pada 05.08.2025. Pihak Syarikat telah memanggil seramai dua (2) orang saksi iaitu Nur Ameera Binti Alias (COW1) dan Fatin Yasmeen Binti Omar (COW2) manakala Yang Menuntut (CLW1) hadir memberikan keterangan bagi pihaknya

Fakta Kes

[3] Fakta kes kedua-dua pihak adalah seperti berikut:

Pihak Syarikat

[4] The Claimant was employed by the Company with effect from 03.07.2023 as an Advisor II – Content Moderator at a monthly salary of RM 8,700.00.

[5] Pursuant to her employment contract, as Advisor II – Content Moderator, the Claimant was required to work 40 hours per week and was entitled to a 45-minute lunch break.

[6] On 20.03.2024, the Claimant had left her work (allegedly, to LHDN) during her 'lunch break'. As the Claimant was out for approximately 1.5 hours (beyond her entitled 45-minute lunch break), a show cause letter was issued to the Claimant on 21.03.2024 ("SCL-1").

[7] Within two hours of SCL-1, the Claimant met with several officers of the Company, where the matters raised in SCL-1 were resolved and confirmed via an email. However, less than 24 hours later, the Claimant issued an email to her superior (solely) raising dissatisfaction.

[8] On 05.05.2024, the Claimant tendered her notice of resignation. Pursuant to her terms of employment, the Claimant is to serve 60 days before her termination takes effect.

[9] In late May 2024, several issues concerning the Claimant were reported leading to the Company issuing another show cause letter ("SCL-2") to the Claimant on 29.05.2024.

[10] In the 3 days following the issuance of SCL-2, the Claimant sent out approximately 60 emails to the Company. None of which addressed or responded to the allegations against the Claimant and many of which were sent to harass and annoy the Company.

[11] Consequently, the Company issued a Notice of Domestic Inquiry ("DI Notice") to the Claimant on 06.05.2024 which set out the exact same allegation against the Claimant as set out in SCL-2 to enable the Claimant to meet the allegation made against her.

[12] The Domestic Inquiry ("DI") was scheduled for 10.06.2024. However, the Claimant failed to attend the DI on 10.06.2024 without informing the Company. The Company then rescheduled the DI session to 11.06.2024.

[13] The Claimant then sent two email replies. The first on 10.06.2024 at 3:30 stating nothing material. The Claimant then sent a second email on 11.06.2024 at 12:06 p.m. apologizing for her absence but stating "…it's a useless meeting".

[14] The Company then proceeded with the DI, ex parte and the DI Panel unanimously found the Claimant guilty and recommended termination. The DI Panel was made up of Impartial Individuals from different departments, uninvolved with the facts and not involved in the investigations.

[15] Consequently, the Company issued a Notice of Dismissal dated 12.06.2024 dismissing the Claimant with immediate effect.

[16] The Company then paid the claimant her last drawn salary on 16.07.2024 after having obtained income tax clearance from LHDN on 10.07.2024.

[17] The Claimant was not issued a 'Release Letter' in view of her dismissal for misconduct in accordance with the Company's policy. The Claimant was informed of the same which she accepted.

[18] The Company maintains that the Claimant 's dismissal was for just cause or excuse.

[19] The Company has on 14.05.2025 commenced a civil suit against the Claimant for, inter alia, defamation. Currently, the High Court had issued an Ad Interim Injunction Order against the Claimant on 12.06.2025. The civil suit is pending disposal at the High Court.

Kes Yang Menuntut

[20] The Claimant voluntarily tendered her notice of resignation on 05.05.2024 (which would have taken effect latest on 04.07.2024). However, the Company allegedly unlawfully dismissed her on 12.06.2024.

[21] The Claimant took issue with her lunch break entitlement ("Lunch Break Issue") which she alleges was wrongly actioned upon pursuant to SCL-1. The Claimant alleges that the Lunch Break Issue is the "….fundamental starting point and point of this case…".

[22] The Claimant claims that she issued 4 email responses to SCL-2. (There are however approximately 60 emails from the Claimant over a period of about 3 days after SCL-2 was issued).

[23] The Claimant refused to attend a DI set up to adjudicate on the 4 allegations made against the Claimant (which were the same as the allegations in SCL-2) on the grounds that:

28.1 It was a "worthless meeting" as she felt "unfairness" if she attended the meeting and because she was in the "process of leaving" the Company; and

28.2 prior to the DI she had already given her explanation in writing via email.

[24] The Claimant alleges that the DI was set up because of her lunch time entitlement, being made to work beyond 48 hours a week, threats by the Company, sharing of employee's texts and emails, harassment and discrimination threats.

[25] The Claimant pleads and testifies that she will be satisfied and admit that her dismissal is fair if several other people are first dismissed.

[26] The Claimant alleges that her statements in Google Reviews (Allegation-1(b)) "…is based on facts". The Claimant also alleges that she shared on WhatsApp with her co-workers "…for the public interest to protect other victims" (Allegation-1(a) & Allegation-2).

[27] The Claimant alleges that post dismissal, her salary was delayed by 2 months, she was not provided with a 'release letter' and she purchased her own air ticket because she would otherwise have to wait another month. The Claimant ultimately refused her airfare eligibility due to time.

[28] The Claimant has since 23.08.2024 been employed (by another employer) at a salary of RM11,200.00 per month.

Peraturan Pembuangan Kerja dan Peranan Mahkamah Perusahaan

[29] Mahkamah Perusahaan berperanan untuk menilai dan menentukan samaada sesuatu pemecatan oleh majikan (pihak Syarikat) adalah berpandukan atas sebab atau alasan yang adil. Perkara ini terkandung di dalam kes **Goon Kwee Phoy v J &**

P Coats (M) Sdn Bhd [1981] 2 MCJ 129 di mana Raja Azlan Shah (CJ (Malaya) menyatakan seperti berikut:

> "Where representations are made and are referred to the Industrial Court for enquiry, it is the duty of that court to determine whether the termination or dismissal is with or without just cause or excuse. If the employer chooses to give a reason for the action taken by him the duty of the Industrial Court will be to enquire whether that excuse or reason has or has not been made out. If it finds as a fact that it has not been proved, then the inevitable conclusion must be that the termination or dismissal was without just cause or excuse. The proper enquiry of the court is the reason advanced by it and that court or the High Court cannot go into another reason not relied on by the employer or find one for it."

Beban Pembuktian

[30] Majikan (pihak Syarikat) bertanggungjawab untuk membuktikan bahawa penamatan perkhidmatan pekerjanya dilakukan atas sebab atau alasan yang adil sepertimana yang diputuskan di dalam kes **Ireka Construction Berhad v. Chantiravathan Subramaniam James [1995] 2 ILR (Award No.245 of 1995)** seperti berikut:

> "It is a basic principle of industrial jurisprudence that in a dismissal case the employer must produce convincing evidence that the workman committed the offence or offences the workman is alleged to heve committed for which he has been dismissed. The burden of proof lies on the employer to prove that he has just cause and excuse for taking the decision to impose the disciplinary measure of dismissal upon the employee. The just cause must be, either a misconduct, negligence or poor performance based on the facts of the case."

[31] Pembuktian oleh pihak Syarikat adalah di atas imbangan kebarangkalian melalui pengemukaan keterangan bahawa pemecatan itu adalah dengan sebab atau alasan yang adil. Pemakaian prinsip imbangan kebarangkalian ini telah diputuskan

oleh Mahkamah Rayuan apabila YAA Hakim Abdul Hamid di dalam kes **Telekom Malaysia Kawasan Utara v. Krishnan Kutty Sanguni Nair & Anor [2002] 3 CLJ 314** menyatakan seperti berikut:

> "….it is quite clear to us that the Industrial Court should not be burdened with the technicalities regarding the standard of proof, the rules of evidence and procedure that are applied in a court of law. The Indutrial Court should be allowed to conduct its proceeding as a "court of arbitration", and be more flexible in arriving at its decision, so long as it gives special regard to substantial merits and decide a case in accordance with equity and good conscience…Thus, we can see that the preponderant view is that the Industrial Court, when hearing a claim of unjust dismissal, even where the grounds is one of dishonest act, including "theft", is not required to be satisfied beyond reasonable doubt that the employee has "committed the offence", as in a criminal prosecution….The standard of proof required, that is the civil standard based on the balance of probabilities, which is flexible, so that the degree of probability required is proportionate to the nature of gravity of the issue."

[32] Pemakaian prinsip ini disokong oleh Dr. Dunstan Ayadurai di dalam penulisannya **"Industrial Relations in Malaysia: Law & Practice":**

> "A workman can seek remedy under s.20 only if he had been dismissed. In the instant case there is no dispute that the claimant had been dismissed by SESCO/company. The only issue for this court to determine is whether the dismissal had been for just cause and excuse, the onus of proving the existence of the same being cast upon the employer. This onus or the burden of proof on the company is based on a standard of a balance of probabilities (see Telekom Malaysia Kawasan Utara v. Krishnan Kutty Sanguni Nair & Anor [2002] 3 CLJ 314)."

Keterangan dan Dapatan Mahkamah

[33] Tindakan awal pihak Syarikat di dalam melaksanakan proses penamatan terhadap Yang Menuntut adalah melalui proses pengeluaran surat tunjuk sebab

bertarikh 21.02.2024 (COB2, ms 92) yang dikemukakan kepada Yang Menuntut melalui emel bertarikh 21.03.2024 jam 3.35 petang. Isu yang dibangkitkan oleh pihak Syarikat adalah tindakan Yang Menuntut menggunakan waktu rehat melebihi tempoh empat puluh lima (45) minit yang ditetapkan.

[34] Walaupun kandungan surat tersebut tidak menyatakan secara khusus bahawa Yang Menuntut telah menggunakan waktu rehat yang berlebihan, namun melalui keterangan yang ada dan pengakuan Yang Menuntut menunjukkan bahawa kelewatan yang berlaku itu adalah disebabkan oleh tindakan beliau pergi ke Jabatan Hasil Dalam Negeri (LHDN) pada waktu rehat dan gagal berada semula di pejabat pada jam 2.30 petang yang merupakan waktu bekerja.

[35] Di dalam keadaan sedemikian Yang Menuntut adalah terikat di dalam menguruskan hal yang berkait dengan urusan yang dilakukan dalam waktu rehat agar ianya tidak melewati masa rehat sebenar yang telah diperuntukkan.

[36] Secara umumnya tidak ada mana-mana peraturan di mana-mana juga institusi pekerjaan yang menghalang warganya dari keluar untuk berehat bila tiba waktunya. Ianya juga bukan satu halangan untuk Yang Menuntut menggunakan waktu rehat untuk pergi berurusan dengan pihak LHDN termasuk menguruskan urusan persendirian, namun, ianya perlu diselesaikan dalam lingkungan waktu rehat yang ditetapkan itu.

[37] Walaupun apa juga keadaannya, selepas surat tujuk sebab dikeluarkan, isu ini telah dibincangkan di peringkat pihak Syarikat dan hasilnya satu emel bertarikh

21.03.2024 jam 4.41 petang yang bersamaan dengan tarikh pengeluaran surat tunjuk sebab telah dikeluarkan oleh Nando Wirapratama yang merupakan 'Team Leaders' (TLs) kepada Yang Menuntut.

[38] Mahkamah ini menurunkan bahagain penting emel berkenaan seperti berikut untuk suatu ulasan:

> Hi Jihyun,
>
> Below is the summary of our discussion:
>
> - Jihyun were expressing that she is not happy due to non-compliance *(missing from production floor without approval for 1hr 15 mins)* that has been informed by TLs
> - Jihyun admitted that she sent private message in whatsapp angrily and defensive to TLs
> - In the morning (21st March), Jihyun sent message in Google chat KR group, expressing about OM connect and incident with TLs
> - Jihyun shared that she did not go to lunch because need to complete 5 hours utilization and go to LHDN to do e-filing because worried it can't be completed on time
> - Jihyun have frustration with LHDN and does not have lunch lead to anger and misunderstood
>
> In the future.
>
> - We suggest Jihyun to discuss with TLs, if she facing any issue
> - We suggest Jihyun to go LHDN or any personal appointment during Week Off
> - Explained 5 hours utilization is a service agreement with client, however we are working with Concentrix that need to fulfil 9 hours working hours.
>
> In conclusion, we have solved the issue amicably and understood the situation. Thank you.

[39] Adalah jelas bahawa isu waktu rehat ini telah dibincang dan diselesaikan secara damai/mesra tanpa apa-apa tindakan (disiplin) diambil terhadap Yang Menuntut.

[40] Namun, keadaan menjadi ketara, apabila melalui emel bertarikh 31.05.2024 (CLB3, ms 62), Yang Menuntut telah menggembar-gemburkan semula isu ini yang sebelum ini dianggap telah selesai. Tanpa menjejaskan keseluruhan kandungan asal emel ini, Mahkamah merujuk kepada beberapa petikan penting emel tersebut sebagai panduan untuk dibuat rumusan:

> "Let me explain the first show cause letter. It was on Mar 20.
> And I didn't anything wrong, my TL Zhibek forced me to write a show cause letter to cover her fault up. She asked me to write a show cause letter because I went out for lunch without her permission
> I have asked so many times her apology but she never accepted that and I emailed three times, she ignored. And I texted two times, she ignored."
> And she accused me of being aggressive person. No I am not, I am just insisting I didn't do anything wrong.
> I didn't do anything wrong on Mar 20,2023
> I left a note to TL Zhibek before going out for lunch. I said "I am going to Hasil during my lunch time, but I thought I had better leave a message just in case"
> And on that time, I finished Google utilization 5 hrs, so I was done with my utilization
> And also she said before "You can go out anytime if you finish 5 hrs but only 1.5 hr, don't exceed it".
> Every body goes out without permission for lunch
> Why should I need a permission for lunch?
> Lunch time is guaranteed by the labor law.

[41] Pertamanya, tindakan Yang Menuntut menyentuh semula isu ini adalah suatu tindakan "insubordination" apabila melanggari keputusan yang telah dibuat oleh pihak Syarikat melalui perbincangan mesra (amicable)pada 21.03.2024.

[42] Melalui kandungan emel Yang Menuntut di atas, kelihatannya bahawa arahan pihak Syarikat untuk mendapatkan jawapan kepada surat tunjuk sebab telah disalah ertikan oleh Yang Menuntut sebagai suatu ‘paksaan’ untuk beliau menyediakannya dan telah terlebih dahulu membuat suatu andaian bahawa beliau tidak bersalah atas isu ‘waktu rehat’ ini sebelum mengemukakan jawapan untuk penilaian pihak Syarikat. Lebih daripada itu, dengan membelakangkan protokol telah menuntut agar pihak Syarikat (TLs Zhibek) meminta maaf atas tindakan tersebut. Ini juga jelas merupakan suatu tindakan ‘insubordination’ dan melanggari peraturan yang sedia ada.

[43] Kegagalan Yang Menuntut mematuhi jadual waktu rehat apabila pergi berurusan dengan pihak LHDN telah dimanipulasikan dengan dakwaan bahawa surat tunjuk sebab itu dikeluarkan atas alasan beliau keluar berehat tanpa kebenaran daripada Zhibek. Ini adalah suatu tanggapan yang tersasar dan terkeluar daripada hakikat dan fakta yang sebenarnya.

[44] Melalui pembacaan kepada keseluruhan kandungan emel ini Mahkamah tidak menolak apa yang dikatakan oleh TLs Zhibek bahawa Yang Menuntut adalah seorang yang agresif dalam erti kata bertindak secara melulu dan mencampur adukan perkara-perkara yang tidak disentuh di dalam surat tunjuk sebab dan gagal atau enggan untuk memahami secara khusus isu pertikaian yang terkeluar daripada skop yang sebenar serta telah menyulitkan perkara yang sebenarnya boleh diselesaikan secara mudah dan teratur.

[45] Hanya atas isu ini sahaja Mahkamah berpandangan bahawa terdapat unsur-unsur negatif di dalam perlakuan Yang Menuntut yang membolehkan pihak Syarikat atas budi bicaranya membuat penilaian dan keputusan sama ada untuk terus mengekalkan beliau sebagai pekerja pihak Syarikat atau sebaliknya.

[46] Isu kedua yang berkait dengan tindakan penamatan perkhidmatan Yang Menuntut adalah lanjutan daripada pengeluaran surat tunjuk sebab bertarikh 29.05.2024 (COB2, ms 113-120) yang mengandungi empat (4) pertuduhan (Allegations) seperti berikut:

> Allegations 1(a)
>
> On 26th May 2024 at 11:54 p.m.on WhatsApp work group:
> You have made offensive remarks, displaying disrespectful/inappropriate behaviour, fomenting distrust and discontent, and intriguing against the company, and other employees

[47] Alegasi 1(a) ini merujuk kepada paparan (screenshots) di muka surat 121-125 COB2 dan muka surat 116 COB2 yang ditulis oleh Yang Menuntut di dalam 'Company's Korean Team WhatsApp Group' 'Google Reviews of the Company Website', 'Holding Company's Website dan 'Clien's Website.

> Allegations 1(b)
>
> On 25th and 26th May 2024, you made another offensive remarks, displaying disrespectful/inappropriate behaviour, fomenting distrust and discontent, and intriguing against the company, other employees and clients by posting on the Google review site, including but not limited to production facilities, client names, and the company's tools.

[48] Alegasi 1(b) ini juga merujuk kepada paparan di dalam Google Review di muka surat 116 COB2.

Allegation 2

. On 28th May 2024 at 5:51 PM, on WhatsApp work group:
You have made again an intriguing against the company, and clients and shared confidential information

[49] Alegasi 2 ini merujuk kepada paparan di dalam Google Review di muka surat 117 COB2.

Allegations 3

On 27th May 2024, at 1:01 PM, you displayed insubordination when the Operation Manager, Dushyant Kumar approached to speak with you in person and you refused to talk to him. Instead, continued engaging in disorderly conduct in the group chat that caused disruption in the operations of the company

[50] Alegasi 3 ini mempunyai kaitan rapat dengan kandungan mesej di dalam 'Google Hangout (COB3, ms 16) yang jelas menunjukan sikap tidak menghormati Yang Menuntut kepada arahan pegawai atasannya apabila enggan hadir untuk berbincang secara fizikal dengan menggunakan kata-kata yang menunjukan kebiadaban (insolencet) dan tidak sopan (impertinent). Sebagai contoh:

"No, I am busy with your client's utilization."

"No, don't lie, it doesn't matter, don't write here, listen to your boss."

Alegations 4

From 15th January until 28th May 2024, you have changed SDM allocation to Queue allocation intentionally. You have reminded to not change SDM through a hangout

group on Thursday 23rd May 2024 at 2:08 PM. However, you are still repeating the same action.

[51] Paparan pada dokumen di muka surat 119, COB2 jelas membuktikan kesalahan yang dipertuduhkan ini.

[52] Secara keseluruhannya semua dokumen yang dirujuk mengikut urutan empat (4) kesalahan yang dipertuduhkan terbukti ada mengandungi kata-kata kesat (offensive remark), menunjukkan sikap tidak hormat (displaying disrespectful), sikap yang tidak sesuai (inappropriate behaviour), membangkitkan kesangsian/kecurigaan dan ketidakpuasan hati terhadap pihak Syarikat dan pekerja.

[53] Rujukan dibuat kepada kes-kes yang diputuskan terdahulu yang mengklasifikasikan tindakan-tindakan sebegini sebagai suatu 'misconduct.'

> "A subordinate should abide by all lawful and reasonable orders or instructions of his employer or superior for otherwise the smooth operation of an organization may not be sustained." **Tuan Hj Mohd Noor Sandiman v. Federal Power Sdn Bhd [2008] 3 ILR 382.**

> "Disobedience of orders is a form of misconduct, if not the most noxious and dangerous kind, as it destroys the authority of employers and/or superior."
> **Mah Pei Yong v. Ri-Yaz Hotels & Resorts Inc [2019] 2 ILR 360.**

> "Use of derogatory, insolent and impertinent language towards a superior officer constitutes misconduct." **Intan Zafina A Rahman v. Power Cables Malaysia Sdn Bhd [2010] 1ILR 338.**

Siasatan Dalaman

[54] Untuk melengkapkan siasatan atas kesalahan yang telah dilakukan, siasatan dalaman adalah suatu proses yang lazim dilakukan kerana ianya memberikan peluang kepada Yang Menuntut dibicarakan dengan cara yang lebih telus melalui pemanggilan saksi dan pengemukaan dokumen-dokumen yang berkaitan.

[55] Atas dasar tidak berpuashati dengan penjelasan Yang Menuntut berhubung empat (4) pertuduhan yang dikenakan terhadap beliau, maka pihak Syarikat atas budi bicara yang ada padanya, telah mengeluarkan notis panggilan siasatan dalaman. (COB1, ms 230-238). Penelitian Mahkamah mendapati bahawa notis ini sudah cukup lengkap di mana ianya turut mengemukakan bersama kepada Yang Menuntut semua empat (4) pertuduhan yang terlebih dahulu telah dikemukakan di dalam surat tunjuk sebab beserta dokumen-dokumen sokongan yang berkaitan untuk pihak Syarikat membuktikannya.

[56] Tidak terdapat apa-apa pemakluman secara formal daripada pihak Yang Menuntut bahawa tarikh yang diberikan itu adalah terlalu singkat yang tidak memberikan ruang kepada beliau untuk membuat persediaan.

[57] Tarikh pertama siasatan dalaman telah dijadualkan pada 10.06.2024. Atas alasan ketidakhadiran Yang Menuntut tanpa apa-apa alasan, tarikh siasatan telah ditunda kepada 11.06.2024 dan ianya juga tidak dihadiri oleh Yang Menuntut walaupun pemakluman telah dibuat.

[58] Rujukan dibuat kepada petikan jawapan/ulasan Yang Menuntut di dalam emelnya bertarikh 11.06.2024 (COB1, ms 239:

> "Sorry about the absence of meeting.
> As I told you it's a useless meeting.
> As long as you think Zhibek was right, our meeting can't work at all."

[59] Adalah jelas bahawa kata-kata dan tindakan ini merupakan suatu perlakuan yang menjurus kepada 'insubordination' dan 'misconduct' yang membelakangkan arahan pihak majikan dan memperlekehkan usaha pihak Syarikat untuk mengadakan prosiding siasatan dalaman seperti yang dijadualkan.

[60] Justeru, tindakan pihak Syarikat menamatkan perkhidmatan Yang Menuntut berdasarkan kepada surat bertarikh 12.06.2024 (COB1, ms 255-256) atas "acts of misconduct and fundamental breaches of the express and implied terms of employment' bukanlah suatu tindakan yang berunsur *mala fide* atau suatu penganiayaan sebaliknya berpandukan kepada sebab dan alasan yang adil sebagai menjaga kepentingan pihak Syarikat.

> "…. the employer has only to show that he had reasonable grounds to believe and did honestly believe that the employee was guilty of misconduct…the test is not whether the employee did it but whether the employer acted reasonably in thinking the employee did it. **[Mohd Saufi Ahmad Rozali & Anor v. Puspakom Sdn Bhd [2013 MELRU 074]**

Rumusan

[61] Pada pengamatan Mahkamah, pihak Syarikat telah mengambil suatu langkah yang selamat dan teratur di dalam menangani masalah salahlaku yang ditimbulkan oleh Yang Menuntut sebelum mengambil tindakan penamatan perkhidmatan beliau.

[62] Sebagai kesimpulan, setelah mengambil kira semua keterangan dan hujahan bertulis kedua-dua pihak serta mendekati peruntukan di bawah s.30(5), Akta Perhubungan Perusahaan 1967 untuk bertindak mengikut ekuiti, hati nurani *(equity and good conscience)* dan merit tanpa memikirkan kepada perkara-perkara teknikal dan berbentuk undang-undang, Mahkamah ini memutuskan bahawa pihak Syarikat telah berjaya membuktikan di atas imbangan kebarangkalian bahawa penamatan kerja Yang Menuntut telah dibuat atas sebab dan alasan yang adil.

[63] Tuntutan Yang Menuntut dengan itu ditolak.

DIPERTURUNKAN DAN BERTARIKH 02 HB DISEMBER 2025

~t.t~

(MOHD ZULBAHRIN BIN ZAINUDDIN)
PENGERUSI
MAHKAMAH PERUSAHAAN MALAYSIA
KUALA LUMPUR